

[doc. web n. 10112750]
Provision of January 30, 2025
Register of provisions
n. 36 of January 30, 2025

THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN THE meeting today, attended by
Prof. Pasquale Stanzione, President, Prof.
Ginevra Cerrina Feroni, Vice President, Dr.
Agostino Ghiglia, and Attorney Guido Scorza, members, and
Secretary General Fabio Mattei;

HAVING REGARD to Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, concerning the protection of natural persons with regard to the processing of personal data, as well as the free movement of such data and repealing Directive 95/46/EC, "General Data Protection Regulation" (hereinafter, "Regulation");

HAVING REGARD to Legislative Decree No. 196 of June 30, 2003, containing the "Code regarding the protection of personal data, containing provisions for the adaptation of the national legal system to Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, concerning the protection of natural persons with regard to the processing of personal data, as well as the free movement of such data and repealing Directive 95/46/EC" (hereinafter "Code");

HAVING REGARD to Regulation No. 1/2019 concerning internal procedures with external relevance, aimed at carrying out the tasks and exercising the powers entrusted to the Guarantor for the protection of personal data, approved by resolution No. 98 of April 4, 2019, published in G.U. No. 106 of May 8, 2019, and on www.gpdp.it, doc. web n. 9107633 (hereinafter "Guarantor Regulation No. 1/2019");

HAVING REGARD to the documentation on file;

HAVING REGARD to the observations made by the Secretary General pursuant to Article 15 of the Guarantor Regulation No. 1/2000 on the organization and functioning of the office of the Guarantor for the protection of personal data, doc. web n. 1098801;

REPORTER Prof. Ginevra Cerrina Feroni;

PREAMBLE

1. Introduction.

With a complaint submitted pursuant to Article 77 of the Regulation, Ms. XX, who, at the time of the facts, was performing her work activity at the Local Health Authority of Modena (hereinafter "Health Authority"), through her lawyer, represented that: "on XX, she verified via the Authority's PC that there was a list showing the vaccinated and unvaccinated personnel," including her name, and that "all personnel of the AUSL could access this information."

2. The investigative activity.

In response to a request for information from the Authority (see note prot. n. XX of XX), with note of XX (prot. n. XX), the Health Authority declared, in particular, that:

"in general, [...] the information regarding vaccination status is contained in applications accessible only by authorized personnel for processing, according to the methods defined [...] by Resolution No. XX";

"regarding the complaint submitted by the employee to this Authority, [...] it was established that the employee was on duty on XX at her assigned workplace (Consultorio at the district headquarters of Vignola), and the Authority conducted a series of checks";

a "review was conducted on the intranet and internet sites of the Authority, to ascertain that no file containing personal data or sensitive data related to the vaccination of employees and patients had been unintentionally made public. In this case, it was possible to exclude that the employee had access to hypothetical 'lists' exposed for free consultation by employees, as no trace of them was

found”;

“the coordinators of the Service - the workplace assigned to the reporting employee - were consulted to verify with them the possible existence of the list subject to the complaint and simultaneously, through the Information & Communication Technology Service, searching in the network folder created for the Service for the possible presence of such a list”;

“this search did indeed yield positive results, and the coordinators were invited to report on the matter: it concerns a Word file named 'vaccination table' [...] created on XX by the coordinator in service until XX and structured in three columns: the first with the surname and sometimes the first name of 15 operators (from the staff and medical management) belonging to the Vignola Consultorio, the second indicating done/not done (referring to the Covid-19 vaccination), the third as a sort of column for notes”;

“the file is contained in the network folder of the Service, in a subfolder named after the first name of the new coordinator, who took over from the aforementioned one in XX; the file was moved into this subfolder on XX, following the reorganization of the documents contained in the network folder by the new coordinator. All operators belonging to the Vignola Consultorio have access to the network folder”;

“from what was expressed by the two coordinators, it emerged that this file was compiled as a reminder solely for organizational purposes and in total good faith, that is, for the sole purpose of planning activities, allowing the operators of the Consultorio to access the vaccination clinics during working hours”;

“the compilation of the list had no discriminatory intent towards the operators of the Consulting Service, based on their vaccination choices, but only an organizational purpose. Therefore, for such mere organizational purposes, the coordinator directly asked the operators of the Consulting Service when they would receive the vaccine, and they freely responded based on their choices or their health status. [...] The list was, as expected, removed”;

“in conclusion, in light of all the checks carried out, it is believed that the Lawyer of the employee in the complaint sent to this esteemed Authority may have referred to such a file 'table for vaccinations'; if this is the case, the employee had access to a 'list', which was not complete and related not to all personnel of the AUSL (as seems to be implied), but only to the employees of her own Service (Consulting Service of Vignola), nor accessible to all AUSL personnel,” but only to such employees.

With a note dated XX (prot. n. XX), the Office, based on the elements acquired, the checks carried out, and the facts that emerged following the investigative activity, notified the Health Authority, pursuant to art. 166, paragraph 5, of the Code, of the initiation of the procedure for the adoption of the measures referred to in art. 58, paragraph 2, of the Regulation for having processed (i.e., collected and then made available through a shared access folder) personal data relating to the vaccination status of workers, in the absence of an adequate legal basis, in violation of arts. 5, 6, and 9 of the Regulation, as well as 2-ter and 2-sexies of the Code.

With the same note, the aforementioned holder was invited to submit written defenses or documents to the Guarantor or to request to be heard by the Authority (art. 166, paragraphs 6 and 7, of the Code, as well as art. 18, paragraph 1, of Law No. 689 of November 24, 1981).

With a note dated XX (prot. n. XX), the Health Authority, which did not request to be heard, submitted a defensive memorandum, stating, in particular, that: “notwithstanding what has already been stated previously to which reference is made, it is specified again that, having heard the Coordinators of the Service (who took turns in this activity in the month of XX), the file in question, created by the Coordinator on XX, contained the indication regarding the administration of the Covid-19 vaccination for 15 operators (among managers and staff of the sector) pertaining to the Consulting Service of Vignola, including the interested party”;

“the file was created in total good faith, as a reminder for purely organizational purposes, or solely for the purpose of planning activities, allowing the operators of the Consulting Service to access the vaccination clinics during working hours”;

“it is specified that following the issuance of [...] D. L. 44/2021 and the entry into force of the

vaccination obligation for healthcare workers, with the related initiation of the verification and suspension procedure from work activities, it was inevitable for colleagues to come to know indirectly, if they were not already aware (which is [...] rather unlikely), of the vaccination status of others, without this happening as a result of the file subject to the report”;

“the malicious nature of the violation is excluded: it was determined in total good faith, for mere organizational reasons, without any discriminatory intent and did not result in the disclosure of the vaccination status of the reporter to persons who were not already aware of it. It is worth reiterating here that the file was contained in a network folder created for the Consulting Service of Vignola for the management of its activities, to which only the operators of the Consulting Service itself have access”;

“the file was immediately removed as soon as it was identified as a result of the verification initiated following the 'Request for information' received from this Authority”;

“the Company has been carrying out training activities for its employees on personal data protection for years, but with the entry into force of the Regulation (EU), it has prepared a training plan aimed at illustrating to everyone, including already 'trained' staff, the innovations introduced by the new legislation”;

“last July, the Company renewed its 'Company Regulation for the use of IT resources and communication tools', to guarantee the security and integrity of the company's information assets and, at the same time, to protect the data of the interested parties (clients and employees); this tool provides users with the necessary prescriptions and operational instructions regarding access and use of IT resources”;

“as for the measures that should have limited or prevented the event, the interested operators were reminded not to allocate and/or store documents containing personal data in the network folders in compliance with the principles of art. 5 of the Regulation (EU), particularly data that is not adequate, relevant, and limited to the purposes for which it is processed”;

“the Company, as soon as it became aware, activated the Privacy Office to understand the causes and remedy what was reported and proceeded to communicate to this esteemed Authority the requested information with note Prot. N. XX of XX”;

“the Company, also through the Privacy Office, promptly consulted all potentially involved Services, starting from the Responsible and the Coordinator of the Consulting Service of Vignola, in order to acquire all information regarding the reported event, to understand in a way.”

****3. Outcome of the Investigative Activity.****

****3.1 The processing of personal data related to the vaccination status of employees.****

The regulation on the protection of personal data provides that public entities, within the workplace context, may process the personal data of data subjects, including data related to special categories, if the processing is necessary, in general, for the management of the employment relationship and to fulfill specific obligations or tasks provided by law or by the law of the Union or the Member States (Articles 6, paragraph 1, letter c), 9, paragraph 2, letter b) and 4, and 88 of the Regulation). The processing is also lawful when it is “necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller” (Article 6, paragraphs 1, letter e), 2 and 3, and Article 9, paragraph 2, letter g), of the Regulation; Article 2-ter of the Code, in the text prior to the amendments made by the decree-law of October 8, 2021, no. 139, in force at the time of the facts subject to complaint, and Article 2-sexies, paragraph 1, of the Code). European legislation provides that “Member States may maintain or introduce more specific provisions to adapt the application of the rules of [...] the regulation regarding processing, in accordance with paragraph 1, letters c) and e), determining more precisely specific requirements for processing and other measures to ensure lawful and fair processing...” (Article 6, paragraph 2, of the Regulation).

In this regard, it is emphasized that the operation of “communication” of personal data by public entities is permitted only when provided for by a legal norm or, in cases provided by law, by regulation (see Article 2-ter, paragraphs 1 and 3, of the Code, in the text prior to the amendments made by the

decree-law of October 8, 2021, no. 139, in force at the time of the facts subject to complaint).

In this context, it should be recalled that in the emergency context related to the spread of the Covid-19 virus, the Authority - considering the succession of very close interventions, due to the worsening of the scenario in the national context, of regulatory interventions and consequent guidance acts issued by the competent institutions - intervened on numerous occasions to provide indications and clarifications, also to employers, taking into account, in particular, the greater risks for data subjects in the workplace, to prevent processing that is not compliant with the personal data protection regulation, leveraging the tasks of raising awareness and promoting a culture of data protection attributed by the Regulation (promoting “awareness and understanding of the public, data controllers, and data processors regarding rules, obligations, risks, safeguards, and rights,” see Article 57, paragraph 1, letters b) and d), of the Regulation, and Article 154-bis, paragraph 1, letter a), of the Code; see, “Coronavirus: Privacy Authority, no to 'do-it-yourself' initiatives in data collection,” press release of March 2, 2020, web doc no. 9282117).

Even in the exceptional emergency situation, considering the issues arising from the pressing needs to protect the safety of workplaces and the related processing of personal data, the Authority therefore called the attention of employers to operate within the scope and limits provided by the applicable regulation as the legal basis for the related processing (Articles 5, 6, 9, paragraph 2 letter b) and 88 of the Regulation), avoiding to undertake initiatives not provided by law and reminding that, until the entry into force of Article 4 of the decree-law of April 1, 2021, no. 44 (converted into law no. 76 of May 28, 2021) which had provided for health professionals and healthcare operators the anti-Sars-cov-2 vaccination as “an essential requirement for the exercise of the profession and for the performance of work activities,” it was not permitted for the employer to collect, directly from the data subjects and with their consent, information related to the private sphere, health, or personal beliefs of workers, including the intention or not to participate in the vaccination campaign. This is also due to the impossibility of considering the consent of employees a valid condition of lawfulness for the processing of personal data in the workplace, given the imbalance in the relationship with the data controller, especially when the employer is a public authority (see Recital 43 of the Regulation; see, FAQ “Data processing in the public and private workplace context during the health emergency,” web doc no. 9337010, with principles that have been confirmed, even in light of the evolution of the regulatory framework related to the emergency, in numerous provisions and general guidance documents; see in particular, the guidance document “Data Protection - The role of the competent doctor regarding safety in the workplace, also with reference to the emergency context,” web doc no. 9585367; regarding the issue of vaccination of workers, provision no. 198 of May 13, 2021 - Guidance Document “Vaccination in the workplace: general indications for the processing of personal data,” web doc no. 9585300, and FAQ regarding the Processing of data related to the anti-Covid-19 vaccination in the workplace, web doc no. 9543615).

Under a different but connected profile, it is noted that, in general, according to the consolidated orientation of the Authority, recently confirmed in numerous provisions on individual cases, the personal data of employees cannot—especially if, as in the case in question, they are particularly sensitive and acquired in the absence of an appropriate legal basis—be disclosed to subjects other than those who are part of the specific employment relationship (see definitions of “personal data” and “data subject” contained in Article 4, paragraph 1, no. 1, of the Regulation), or to those who—also taking into account the definition of “third party” contained in Article 4, paragraph 1, no. 10, of the Regulation—are not authorized to process them due to the tasks assigned and the organizational choices of the data controller (see, among many, most recently, provision no. 606 of September 26, 2024, web doc 10068155; but see also provision no. 223 of June 1, 2023, web doc 9916798, provision no. 322 of September 16, 2021, web doc no. 9711517, and provisions cited therein; see already, points 2, 4, 5.1, and 5.3 of the “Guidelines on the processing of personal data of workers for the management of the employment relationship in the public sector,” of June 14, 2007, published in G.U. July 13, 2007, no. 161, and in www.garanteprivacy.it, web doc no. 1417809).

Regarding the specific case, following the investigative activity, it emerged that the Health Authority

created in XX, and maintained until the receipt of the Authority's request for information, a shared folder—albeit concerning only the workers (about 15) of the office where the data subject performed her work (Vignola consulting office) and accessible only to them—containing a file with the list of names of the personnel operating at the aforementioned office (i.e., the 15 data subjects) indicating the vaccination status of each. Given the accessibility of the aforementioned folder by the data subjects, the processing carried out also involved the communication of particularly sensitive information, including health-related information (see, Article 4, paragraph 1, no. 15 of the Regulation), regarding the occurrence or absence of vaccination of the data subjects, in favor of all subjects authorized to consult the folder, effectively making each of them aware of the vaccination status of their colleagues.

In this regard, reiterating that the Authority, during the emergency period, had repeatedly urged controllers, even when acting as employers, not to undertake autonomous initiatives that involved the collection of data, including health data, that were not legally provided for or ordered by the competent authorities, and considering that, in order to protect public health and maintain adequate working safety conditions and in the provision of care and assistance services, the professional requirement of vaccination was introduced by Law Decree no. 44 of April 1, 2021 (currently no longer in force due to subsequent legislative interventions, see most recently, Law Decree no. 162 of October 31, 2022), it must be concluded that the Health Authority has carried out processing consisting of the collection and availability through the aforementioned shared folder of personal data relating to the vaccination status of the 15 employees, in the absence of a legal basis, in violation of Articles 5, 6, and 9 of the Regulation, as well as Articles 2-ter and 2-sexies of the Code.

4. Conclusions.

In light of the evaluations mentioned above, it is noted that the statements made by the data controller during the investigation—of whose truthfulness one may be called to answer under Article 168 of the Code—while deserving consideration, do not allow for overcoming the objections notified by the Office with the initiation of the procedure and are insufficient to allow for the archiving of this procedure, as none of the cases provided for by Article 11 of the Authority's Regulation no. 1/2019 apply. Therefore, the preliminary evaluations of the Office are confirmed, and the illegality of the processing of personal data carried out by the Health Authority is noted for having carried out processing of personal data relating to the vaccination status of employees, in the absence of a legal basis, in violation of Articles 5, 6, and 9 of the Regulation, as well as Articles 2-ter and 2-sexies of the Code.

Considering that the violation of the aforementioned provisions occurred as a result of a single conduct (the same processing or related treatments), Article 83, paragraph 3, of the Regulation applies, according to which the total amount of the administrative pecuniary sanction does not exceed the amount specified for the most serious violation. Considering that, in this case, the most serious violations, relating to Articles 5, 6, and 9 of the Regulation, as well as Articles 2-ter and 2-sexies of the Code, are subject to the sanction provided for by Article 83, paragraph 5, of the Regulation, as recalled also by Article 166, paragraph 2, of the Code, the total amount of the sanction is to be quantified up to €20,000,000.

In this context, considering, in any case, that the conduct has exhausted its effects, having the Health Authority provided assurances regarding the cessation of the processing in question—there are no grounds for the adoption of further corrective measures pursuant to Article 58, paragraph 2, of the Regulation.

5. Adoption of the injunction order for the application of the administrative pecuniary sanction and accessory sanctions (Articles 58, paragraph 2, letter i, and 83 of the Regulation; Article 166, paragraph 7, of the Code).

The Authority, pursuant to Articles 58, paragraph 2, letter i) and 83 of the Regulation as well as Article 166 of the Code, has the power to “impose a sanction.

****Administrative Monetary Penalty pursuant to Article 83, ****

in addition to [other] [corrective] measures referred to in this paragraph, or in lieu of such measures, depending on the circumstances of each individual case” and, in this context, “the Board [of the

Guarantor] adopts the injunction order, which also provides for the application of the accessory administrative penalty of its publication, in whole or in part, on the Guarantor's website pursuant to Article 166, paragraph 7, of the Code" (Article 16, paragraph 1, of the Guarantor's Regulation No. 1/2019).

In this regard, taking into account Article 83, paragraph 3, of the Regulation, in the specific case, the violation of the aforementioned provisions is subject to the application of the administrative monetary penalty provided for by Article 83, paragraph 5, of the Regulation.

The aforementioned administrative monetary penalty imposed, depending on the circumstances of each individual case, must be determined in amount taking into due account the elements provided for by Article 83, paragraph 2, of the Regulation.

Considering that:

- with specific regard to the nature, severity, and duration of the violation, it should be noted that the processing involved the personal data of 15 workers, also determining mutual knowledge of the vaccination status among the parties concerned (Article 83, paragraph 2, letter a), of the Regulation);
- with specific regard to the subjective profile, the violation was committed by erroneously invoking organizational needs (Article 83, paragraph 2, letter b), of the Regulation);
- the processing involved very sensitive data, including data belonging to the special categories referred to in Article 9 of the Regulation, concerning vaccination status as a health service (cf. Article 83, paragraph 2, letter g), of the Regulation),

it is believed that, in this specific case, the level of severity of the violation committed by the data controller is medium (cf. European Data Protection Board, "Guidelines 4/2022 on the calculation of administrative monetary penalties pursuant to the GDPR" of May 24, 2023, point 60).

That said, it is considered that, for the purposes of quantifying the penalty, the following circumstances should be taken into account:

- the Health Authority has offered good cooperation with the Authority during the investigation (Article 83, paragraph 2, letter f), of the Regulation);
- there are no relevant previous violations committed by the Hospital Authority (Article 83, paragraph 2, letter e), of the Regulation);
- the violation occurred during a period characterized, particularly with regard to Health Authorities, by numerous organizational difficulties related to the issues of the emergency period characterized by the spread of the Sars-cov 2 virus (Article 83, paragraph 2, letter k), of the Regulation).

In light of the aforementioned elements, assessed as a whole, it is deemed appropriate to determine the amount of the monetary penalty at €10,000 (ten thousand) for the violation of Articles 5, 6, and 9 of the Regulation, as well as Articles 2-ter and 2-sexies of the Code, as an administrative monetary penalty deemed, pursuant to Article 83, paragraph 1, of the Regulation, effective, proportionate, and dissuasive.

It is also believed that, pursuant to Article 166, paragraph 7, of the Code and Article 16, paragraph 1, of the Guarantor's Regulation No. 1/2019, the publication of this section containing the injunction order on the Guarantor's website should proceed. This is in consideration of the sensitivity of the information subject to processing concerning the vaccination status of certain workers.

Finally, it is noted that the conditions of Article 17 of Regulation No. 1/2019 are met.

****ALL OF THE ABOVE CONSIDERED, THE GUARANTOR****

declares, pursuant to Article 57, paragraph 1, letter f), of the Regulation, the unlawfulness of the processing carried out by the Health Authority for violation of Articles 5, 6, and 9 of the Regulation, as well as Articles 2-ter and 2-sexies of the Code, in the terms set out in the reasoning;

****ORDERS****

The Local Health Authority of Modena, represented by the legal representative pro tempore, with registered office at Via San Giovanni Del Cantone 23 - Modena (MO) C.F. 02241850367, to pay the sum of €10,000 (ten thousand) as an administrative monetary penalty for the violations indicated in the reasoning. It is represented that the offender, pursuant to Article 166, paragraph 8, of the Code, has the option to settle the dispute by payment, within 30 days, of an amount equal to half of the imposed penalty;

****ENJOINS****

The aforementioned Health Authority, in case of failure to settle the dispute pursuant to Article 166, paragraph 8, of the Code, to pay the sum of €10,000 (ten thousand) according to the methods indicated in the annex, within 30 days from the notification of this provision, under penalty of the adoption of subsequent enforcement acts pursuant to Article 27 of Law No. 689/1981;

****DISPOSES****

- pursuant to Article 166, paragraph 7, of the Code and Article 16, paragraph 1, of the Guarantor's Regulation No. 1/2019, the publication of the injunction order on the Guarantor's website;
- pursuant to Article 154-bis, paragraph 3 of the Code and Article 37 of the Guarantor's Regulation No. 1/2019, the publication of this provision on the Authority's website;
- pursuant to Article 17 of the Guarantor's Regulation No. 1/2019, the annotation of the violations and the measures adopted in accordance with Article 58, paragraph 2 of the Regulation, in the internal register of the Authority as provided by art. 57, par. 1, lett. u) of the Regulation.

Pursuant to arts. 78 of the Regulation, 152 of the Code, and 10 of Legislative Decree No. 150/2011, an appeal against this provision may be filed before the ordinary judicial authority, under penalty of inadmissibility, within thirty days from the date of communication of the provision itself or within sixty days if the appellant resides abroad.

Rome, January 30, 2025

THE PRESIDENT

Stanzione

THE REPORTER

Cerrina Feroni

THE SECRETARY GENERAL

Mattei